

**IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA
(LAND DIVISION)**

AT DAR ES SALAAM

LAND CASE NO. 15 OF 2023

AYUB SAMSON SANGA t/a

AYUB SAMSON ENTERPRISES.....PLAINTIFF

VERSUS

KCB BANK (T) LTD.....DEFENDANT

JUDGMENT

Date of last Order :05/10/2023

Date of Judgment: 18/12/2023

K.D. MHINA, J

In this suit, the parties are Ayub Samson Sanga t/a Ayub Samson Enterprise, a resident of Kigamboni Municipality in Dar es Salaam ("hereinafter to be referred to as the plaintiff") lodged this suit in this Court on 17 January 2023 against KCB Bank Tanzania Limited, the Legal entity doing banking business ("hereinafter to be referred to as the defendant").

The disputed between them are the allegations of the breach of loan contracts by the defendant and the defendant's intention (by a default

notice) to sell the landed mortgaged property described as Plot No. 55 Block "K" located at Kariakoo area with a Certificate of Title No. 48728 registered in the name of the Ayub Samson Sanga.

The background to this matter briefly, as per the pleadings, is as follows;

The plaintiff alleges that in 2018, he had a loan agreement of TZS. 500,000,000/= granted by the Defendant vide agreement signed on 20 March 2018 with an interest rate of 20%. The loan was divided into a term loan of TZS 150,000,000, payable within 24 months, and an overdraft facility of TZS. 350,000,000 for 12 months.

On 11 April 2019, Plaintiff and Defendant entered into another loan agreement as a continuation of the first loan agreement whereby the Overdraft Facility was renewed and reduced from TZS. 350,000,000/= to TZS. 175,000,000/=: and by then, having partly repaid the Term Loan, the same had been restructured to TZS. 265,501,000/=. The chargeable interest was increased to 21%, a conduct which violates banking regulations and norms. Further, Defendant unilaterally and without any reason adduced thereof and consent obtained, increased the chargeable interest from 21% to 22% and continued charging for the whole life of the agreement, an act

which violated the provisions of the agreement, the banking regulations and norms.

He further alleges that by another agreement dated 18 March 2020, when the business environment had become so difficult and unable to sustain the Overdraft Facility arrangement, they agreed to convert both the Overdraft Facility and Term Loan to one Term Loan of TZS. 409,613,000/= payable within 36 months at an interest of 21 %.

After the above agreement, the business stalled because of the COVID-19 pandemic; Plaintiff could not repay the loan and informed Defendant officially vide a letter dated 21 April 2020. In the letter, Plaintiff requested Defendant to grant an extension of loan repayment until business conditions came to normality.

As a result, Defendant prepared an addendum to the agreement of 27 July 2020; the Term Loan amount was increased to TZS—433,529,000/= arising from capitalization of arrears. The repayment tenure was extended by three months, from 30 July 2020 to 30 October 2020, so the first instalment was to start after that with the interest of 21% per annum.

From above, the plaintiffs complained that there was a breach of the loan contract because;

One, the defendant, being aware of the Plaintiff's financial difficulties arising from an unfavourable business situation created by the COVID-19 pandemic, increased chargeable interest from 20% to 21% while knowing that the agreement was a continuation of the previous loan contrary to banking and financial regulations and norms.

Two, whereas the amount of money lent was as it was amalgamated to TZS. 433,529,000/=, as in the agreement and addendum, the Bank Statement shows that the amount of the loan was inflated to TZS. 439,160,957.02, which was an unsolicited and unwarranted increase of TZS. 5,631,957.02.

Three, from the Bank Statement, Defendant did not honour its obligation regarding the three-month grace period starting from 30th July 2020 and ending on 30 October 2020 as per the addendum because it started deducting payments from deposits straightaway from the date of disbursement beginning on 30th July 2020.

Fourth, the agreed interest as per the agreements, as well as the addendum being 21% per annum, but as per the Bank Statement, the Defendant charged the interest at the rate of 22% per annum.

Furthermore, the plaintiff alleges that on 1 June 2022, he wrote

to the defendant complaining of dishonouring the grace period, illegal charge of interest and penalties not contained in the agreement and wrongfully alleged over-disbursement asking the Defendant to consider the matters and rectify the errors.

Instead of remedying the situation, the Defendant issued a Statutory 60 days' Notice of Default dated 17 October 2022, demanding immediate payment of TZS. 119,306,462.04; otherwise, the plaintiff's mortgaged property would be subject to the powers of the Defendant, including sale to realize the amount.

The allegations above, triggered the plaintiff to seek relief from this Court. He now prays for Judgment and Decree against the defendant for the following reliefs;

- i. A declaration order that as per the whole of the above, the Defendant is in breach of contract.*
- ii. A declaration order that the purported notice is in effective for contravening the loan agreements.*
- iii. An order that the Defendant having violated the grace period, inflating the amount of disbursement, overcharging interests as well as inflicting penalties all those not provided by the contracts as stated above, the same be Ordered to waive all interests charged ab initio.*

- iv. From (iii) above, an order that the loan repayment be calculated and effected on the principal loan only*
- v. An order that the Defendant returns all monies unlawfully deducted from the Plaintiff's account as interest and penalties or in the alternative, convert them as deposits to reduce the loan debt minus interests as prayed in (iii) above*
- vi. Interest of 15% per annum on (iii) from the date of filing of suit to date of judgment*
- vii. Interest of 15% per annum on (vi) from the date of judgment to date of final settlement*
- viii. In the alternative to the above prayers in (iii), (iv), (v), (vi) (vii) hereinabove, a declaration order that the Plaintiff is no longer indebted to the Defendant*
- ix. Permanent injunction against the Defendant from interfering with peaceful enjoyment of the suit land known as Plot No. 55 Block "K" Certificate of Title No. 4872.*
- x. Costs*
- xi. Any other reliefs.*

In the written statement of defence, the defendant vehemently disputed the claims. Briefly he replied that all terms and conditions applied to the plaintiff were as per the signed facility letter subject to the transaction between the parties. Further, the transactions between the parties were

according to the law and good Banking practices and at no instance, the defendant acted in any manner to jeopardize the interest of the plaintiff.

The controversy above put the parties at issue; therefore, on the first day of the hearing, the following issues were framed and agreed upon by the parties and were accordingly recorded by this court for the determination of this suit namely:

- i. Whether or not there is a breach of contracts between the parties.*
- ii. To what reliefs the parties are entitled.*

At the hearing the plaintiff was represented by Mr. Amin Mohamed Mshana, learned advocate while the defendant was represented by Mr. Anindumi Jonas Semu, also a learned advocate.

In support of his case, the plaintiff called only one (1) witness; Ayub Samson Sanga (the plaintiff), who testified as PW1, whereas in a bid to support his case, the defendant also called one (1); Avitus Ernest Kyaruzi, the defendant's Senior Manager of Securities and Documentations, who testified as DW1.

In his testimony (**PW1**), **Ayub Samson Sanga** testified that he entered loan agreement with the defendant in which after the loan advanced to him, the defendant breached the terms of that the loan contract.

He narrated that in the agreement the agreed payable interest was 21% per annum but the defendant deducted 22% per annum from his account. When he complained about that interest, he was informed to ignore the interest shown in the loan agreement for the reason that the interest charged was already set in the defendant's computer programs.

Further, they agreed to have a grace period of three months, from 31 July 2020, the date when the loaned money was disbursed into his account. But the defendant breached that term by starting to deduct on the same day, the loan money deposited into his account.

PW1 also testified that the amount of loan demanded by the defendant to be repaid was contrary to the loan agreement. The loan agreed was TZS. 433,000,000 as a round figure but the defendant requested the repayment of TZS. 439,000,000/=.

In total, PW1 stated that he entered with the defendant four loan agreements; in the years 2018, 2019 (two times) and in 2020.

To start with the loan agreement of the year 2018, he testified that the amount was TZS. 500,000,000/=. To that effect, he tendered;

- i. Loan agreement between the plaintiff and defendant dated 13 March 2018 as Exhibit P1*

On 11 April 2019, he signed another loan agreement with the defendant. It was a restructuring of the 2018 loan agreement. The agreement had TZS. 265,500,100/= as a term loan and TZS. 175,000,000/= as an overdraft facility. He stated that at that time doing business was very difficult, therefore he agreed with the terms of restructuring. The total amount was TZS. 440,000,000/= because he had already paid TZS. 60,000,000/= in the first loan agreement. To that effect, he tendered;

- i. Loan agreement between the plaintiff and defendant dated 11 April 2019 (Renewal of overdraft facility and restructuring of the term loan as Exhibit P2.*

PW1 further testified that he was servicing the loan every month without any default. He was paying according to the payment schedule. To that effect, he tendered;

- i. Payment schedule and the Bank statement as collectively Exhibit P3.*

On that Bank statement he testified that the interest chargeable shown was 22%. Further, it was indicated that the loan money was deposited into his account on 30 July 2020. But on the same date TZS. 12,400,000/= was deducted as a loan repayment. Again, on the same date, TZS. 16,180,000/= and TZS. 15,775,000/= were deducted. Also, TZS. 4,778,000/= was deducted as other charges.

On October 2020, TZS. 109,000/= was deducted by the defendant and on 20 November 2020, also TZS. 9,970,000/= was deducted.

He testified that all deduction were done while the grace period of three months was yet to expire.

On 27 July 2020, he entered another loan agreement with the defendant after he informed the defendant the difficulties, he was facing in his business due to Covid 19 pandemic. Therefore, in the agreement he was provided a grace period of three months before starting to repay the loan. To that effect, he tendered;

- i. Addendum letter (Amendment to the facility agreement dated 16 March 2020) between the plaintiff and the defendant dated 27 July 2020 as Exhibit P4.*

He further testified that the amount in the loan agreement was TZS. 433, 529,000/= but the Bank statement indicated that the amount deposited was TZS. 439,180,000/=; therefore, he did not know where the additional TZS. 5,000,000/= came from. Further, the interest imposed was 22% contrary to what they agreed.

Again, on 16 March 2020, there was a loan contract which was the restructuring of the previous loan agreement. To that effect, he tendered;

- i. Loan agreement between the plaintiff and defendant dated 16 March 2020 as Exhibit P5.*

After all controversies, he wrote a letter to the defendant complaining that they were acting against the terms of the loan agreement. Therefore, he requested the defendant to waive the interest so that he can pay the principal amount. To that effect, he tendered;

- i. The letter dated 1 June 2022 from the plaintiff to the defendant as Exhibit P6.*

The Bank did not respond and he decided to sent a reminder letter. Later, the defendant served him with a loan default notice. To that effect, he tendered;

- i. Default notice dated 17 October 2022 as Exhibit P7.*

He was given sixty (60) days to pay TZS. 271, 000,000/= and in case of failure, the defendant would sell his property.

Regarding the property, he testified that in the loan agreements there was no clause in respect of selling of his property.

He concluded by testifying that his business suffered a major set back as a result in August 2020, he failed to pay the salary of his staff which resulted into their resignation. Also, his business failed to expand and his status went down.

Therefore, he prayed for this Court to order the waiver of interest so that he can proceed to pay only the principal because the defendant charged that interest contrary to the agreement. The defendant to compensate him for the loss due to the breach of contract.

Also, the defendant to refund the money which they withdrew unlawfully from his account contrary to the terms of the loan agreement. And last the defendant should return back his title deed.

In the defence case, **DW1, Avitus Ernest Kyaruzi**, testified that the plaintiff, Ayub Samson Sanga t/a Ayub Samson Enterprises took a loan in their bank.

He stated that Exhibit P2 was a loan agreement between the plaintiff and the defendant dated 11 April 2019.

The agreement was for two kinds of loans advanced to the plaintiff. The first was an overdraft of TZS 175,000,000/=. It was the second overdraft facility after the plaintiff executed the first one. The second was a term loan of TZS. 265,000,001/=. It was the restructuring of the first-term loan.

The aim of the overdraft was to run the foodstuff/ grain crops business, and the term loan was to service the loans properly, both the term loan and overdraft. The overdraft term was for 12 months, and the term loan was for 36 months. The term loan had a facility fee of 1%.

DW1 further testified that after issued the loan to the plaintiff he did not fulfill the terms because of the failure to repay the loan on time which which resulted the loan to become a default loan. After that default, they served the plaintiff with a demand notice (Exhibit P7), requesting him to repay the loan within two months and in case of default the bank would proceed to auction the mortgaged properties.

He concluded by testifying that, after the plaintiff was served with the default notice, he decided to file the case. But the plaintiff's claims have no

merits because he took the loan therefore, he must repay that loan with interest as per the agreement.

When he was cross-examined, he stated that the loan was TZ 175,000,000/= and TZS 265,510,000/=, thus total was TZS 440,570,000/= with an interest of 21%. Also, he stated that the repayment for the term loan was TZS 10,147,292/46 as a monthly repayment for the period 36 months.

Further, when he was cross-examined regarding exhibit P3 he stated that the Bank statement did not indicate 21%. The document indicated interest to be 22.0000.

On re-examination, he stated that the actual amount deducted as interest was indicated in the content of the instalments of the loan repayment. It included interest, arrears, penalties, compound interest and monthly charges.

In a nutshell and briefly, that was the evidence from both the plaintiff and defendants' witnesses.

At the end of the hearing, the parties filed the final submissions to clarify their cases.

In this suit, the evidence indicates that the relationship between the plaintiff and the defendant's Bank started on 13 March 2018, when they entered into a loan agreement.

The relationship was actuated by a banking facility dated 13 March 2018 **(Exhibit P1)**. The loan granted was split into an overdraft facility of TZS. 350,000,000/= and a term loan of TZS. 150,000,000/=.

The overdraft facility should be repaid within 12 months, while the term loan within 24 months. The interest for both was 20% per annum.

The security for the facility was the Legal Mortgage over a landed property on Plot No. 55 Block "K" Kariakoo with Certificate of Title No. 48728.

Again, on 11 April 2019, the plaintiff and the defendant agreed to renew the overdraft facility and restructure the term loan **(Exhibit P2)**. The purpose of the renewal of the overdraft was for working capital in a business while the restructuring of the term loan was to facilitate smooth repayment and reduction of the hardcore element. It was after the portion of the overdraft facility and the existing term loan were combined.

For the renewal of the overdraft, the amount was TZS. 175,000,000/= payable within 12 months, and for the term loan, the amount was TZS. 265,501,000/= payable within 36 months. The interest for both was 21% per annum, with the legal mortgage remaining the same.

On 16 March 2020, the parties entered into another agreement. At that time, the term loan was reviewed, and with the amalgamation of the existing overdraft facility (**Exhibit P5**). Thus, the restructuring was done, and the amount was TZS. 409,613,000/= to be payable within 36 months with an interest rate of 21% per annum. The legal mortgagee remained the same.

On 27 July 2020, the parties agreed to amend the facility agreement of 16 March 2020 (**Exhibit P5**). At this time, the approved facility was the term loan (restructuring with capitalization of arrears). The agreed amount was TZS 433,529,000/= with an interest of 21% per annum. Also, there was a three-month moratorium period before repaying the loan. The legal mortgagee remained the same.

From above, it is quite clear that there is no dispute that there were loan agreements between the parties, and the last one was amended on 27 July 2020.

The question is whether there was a breach of contract on the part of the defendant, as alleged by the plaintiff. In his evidence, the plaintiff complained about the following issues, which he stated was a breach of the agreement.

One, the defendant started to deduct money before the expiry of the grace period.

Two, the defendant charged the interest of 22% instead of 21% as per the agreement.

Three, the notice of default contravened the loan agreements as there was no clause to sell the mortgaged property.

The three sub-issues above will determine the first issue I framed. Therefore, in the determination, I will start with the first sub-issue.

On this, I will sail and be guided by the principle enunciated under section 110 (1) of the Evidence Act as a standard in proving a case.

The section reads;

"Whoever desires any court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts must prove that those facts exist."

Similarly, I will be guided by the case of **Hemedi Said vs. Mohamedi Mbilu** (1984) TLR 113, where it was held that;

"He who alleged must prove the allegations."

Therefore, the burden of proof lies on the plaintiff's side who made the allegations.

Starting with the first sub-issue, the defendant in his evidence, when the loan as per exhibit P5 was disbursed into his account on 30 July 2020, on the same date TZS. 12, 400,000/=, TZS. 16, 180, 000/=, TZS. 15,775,000/= 4,778,000/= were deducted, respectively.

In October 2020, again, TZS. 109,000/= were deducted, and on 20 November 2020, TZS. 9,970,000/= were deducted.

He alleged that the defendant deducted the same while the grace period of three months was yet to expire. He tendered the Bank Statement **(Exhibit P3)**.

On his side, DW1 did not say anything regarding the deductions before the expiration of the grace period.

Having gone through exhibit P3, it is quite clear that on 30 July 2020, after loan money was deposited into the plaintiff's account, there were deductions as follows;

- i. On 30 July 2020, TZS. 12,401,555/23 as loan repayment.
- ii. On 30 July 2020, TZS. 16,180,804/70 as a loan repayment.
- iii. On 30 July 2020, TZS. 15,775,768/28 as a loan repayment
- iv. On 30 July 2020, TZS. 15,383,797/55 as loan repayment.

In my opinion, that was contrary to what was agreed on 27 July 2020 between the parties because the plaintiff was given a grace period of three months before starting to repay the loan.

Further, as per exhibit P3, after the deductions, the remaining amount was TZS. 374, 640, 830/94 after TZS. TZS. 64,520,136/08 were deducted on the same date.

On the second sub-issue, the background of the parties regarding interest is as follows.

In the first loan agreement (**Exhibit P1**), the interest agreed upon was 20% per annum. On 11 April 2019, when the parties entered into the restructuring of the first loan (**Exhibit P2**), the agreed interest was 21% per annum.

The same interest was maintained in the agreement of 16 March 2020(**Exhibit P5**) and the last agreement, another loan restructuring (**Exhibit P4**).

In his evidence, the plaintiff complained that the actual interest charged by the defendant was 22% instead of 21%, as per their agreement. He tendered the Bank Statement (Exhibit P3) to support his complaint.

In that bank statement, the interest charged indicated was as follows
I quote;

Interest rate:22. 00000

On the other side, when DW1 testified did not say anything regarding the interest. However, when cross-examined, he stated that the agreed interest was 21%.

When he was further cross-examined regarding the interest shown in the bank statement, he stated that it was 22.00000, and the bank statement did not indicate an interest of 21%.

From the above and having gone through the loan agreements and the bank statement, it is clear that what was agreed was 21%, but in actual deductions, as per the statement, the defendant charged 22%.

Therefore, the defendant charged the interest contrary to the agreement.

Regarding the third sub-issue, the notice of default contravened the loan agreements as there was no clause to sell the mortgaged property.

This also should not detain me long. First of all, as I alluded to earlier, there is no dispute that the defendant advanced loans to the plaintiff and several times they restructured their loan agreements upon the request of the plaintiff. It was after the plaintiff defaulted to repay according to the payment schedule.

In his evidence, the plaintiff stated that it was because of the challenges of doing business and the effect of COVID-19. He further stated that he was served with the default(demand) notice (Exhibit P7).

In that default notice dated 17 October 2022, he was supposed to repay TZS. 271,000,000/= within 60 days; otherwise, the mortgaged property would be sold.

On his side, DW1 stated that the plaintiff failed to repay the loan, resulting in the loan becoming the default. That was why the bank served the plaintiff with the demand notice.

Therefore, the evidence indicated that the defendant advanced the loan to the plaintiff.

Further, in that loan, according to Exhibit P1, P2 and P5, the security for that loan was the mortgagee deed registered in the defendant's name, i.e., Plot No. 55 Block "K" Kariakoo with Certificate of Title No. 48728.

Therefore, on that the law is clear under sections 126 (d) and 127 (1) (2) (d) on the powers of the mortgagor. The provisions read that;

126. Where the mortgagor is in default, the mortgagee may exercise any of the following remedies –

(d) sell the mortgaged land, but if such mortgaged land is held under customary right of occupancy, sale shall be made to any person or group of persons referred to in section 30 of the Village Land Act.

127.-(1) Where there is a default in the payment of any interest or any other payment or any part thereof or in the fulfilment of any condition secured by any mortgage or in the performance or observation of any covenant, express, powers, remuneration and duties of the receiver or implied, in any mortgage, the mortgagee shall serve on the mortgagor a notice in writing of such default.

(2) (d)that, after the expiry of sixty days following receipt of the notice by the mortgagor, the entire amount of the claim will become due and payable, and the mortgagee may exercise the right to sell the mortgaged land”.

Therefore, as per the law above, in case of failure to repay the loan, the lender is empowered to sell the mortgage.

The Court of Appeal in **The National Bank of Commerce vs. Dar es Salaam Education and Stationery** [1995] T. L. R. 272, elaborated clearly this position that the law empowers the mortgagee to exercise power to sell the mortgaged property if a mortgagor fails to repay the loan.

From the above discussion, the third sub-issue is decided in negative. The defendant correctly issued the default notice and did not contravene the loan agreements.

Flowing from above, since both parties breached the terms of the agreements. I have the following as a way forward.

One, the law governing loans is straight forward that: if you borrow, you must pay, as it was held by the Court of Appeal in **the Private Agriculture Sector Support Trust and another vs. Kilimanjaro Cooperative Bank**, Consolidated Civil Appeals No. 171 and 172 of 2019 (Tanzlii) where it was held that;

"The parameters of the loan are pretty straight forward. If you borrow money, you must ultimately pay it back, in most cases with interest. There is no shortcut".

Therefore, the plaintiff has the obligation to repay the money advanced to him by the defendant.

Two, since the interest charged was contrary to what the parties agreed upon, the parties must go back to their agreement and resort to the 21% interest as they agreed.

Therefore, though I hold that the plaintiff is obligated to repay the loan but the repayment must be calculated according to the agreed interest of 21%.

Three, in the third sub-issue, I hold that the defendant started to deduct the money from the plaintiff's account on the very day the money was disbursed, contrary to the agreement, which provided for the "grace period" of three months. The money deducted was

On this, on the way forward, I think since it was a new loan rather than restructuring a previous loan after the plaintiff defaulted to pay within time. And a total of TZS.64,520,136/08 was deducted from the plaintiff's account on the date when the loan was disbursed, then there is no liability for the plaintiff to pay that money. This is because the amount was already deducted by the defendant.

Going further, as I alluded to earlier, the remaining after the deduction was TZS. 374, 640, 830/94 and in my opinion, that was the actual money released and advanced to the plaintiff.

Therefore, the first issue is decided as above.

Turning to the 2nd issue for determination, it is on reliefs to which the parties are entitled. Therefore, for clarity, I will deal with each relief claimed.

In the first reliefs, the plaintiff prayed;

- i. A declaration order that as per the whole of the above, the Defendant is in breach of contract.*

It is a settled legal principle that those who come into equity must come with clean hands. The principle requires the court to deny equitable relief to the party who has violated good faith concerning the subject matter of the claim.

In an American case of **Colby Furniture Company Inc vs. Belinda J. Overton**, 299 So. 3d-Ala: Court of Civil Appeals, 2019, the purpose of the principle was explained as;

"is to prevent a party from obtaining relief when that party's own wrongful conduct has made it such that granting the relief would be against equity and good conscience".

Therefore, while the plaintiff complained that the defendant breached the contract, he also breached the same several times for failure to repay the loan. On this, I maintain the position I hold above for the way forward for each breach done by the plaintiff and the defendant.

For the 2nd and 11th prayers, i.e.

- i. A declaration order that the purported notice is in effective for contravening the loan agreements.*
- ii. Permanent injunction against the Defendant from interfering with the peaceful enjoyment of the suit land known as Plot No. 55 Block "K" Certificate of Title No. 4872*

As I elaborated earlier, since I have found that the mortgage deed as the security for the loan was a landed property registered in the name of the plaintiff, i.e. Plot No. 55 Block "K" Kariakoo with Certificate of Title No. 48728 and the defendant failed to repay the loan. Then, the lender was empowered to issue a default notice and to sell mortgage property. Then, these prayers are dismissed.

For the 3rd , 4th , 5th and 8th prayers, i.e

- i. An order that the Defendant, having violated the grace period, inflating the amount of disbursement, overcharging interests as well as inflicting penalties on all those not provided by the contracts as stated above, the same be Ordered to waive all interests charged ab initio.*
- ii. An order that the loan repayment be calculated and effected on the principal loan only.*

- iii. *An order that the Defendant returns all monies unlawfully deducted from the Plaintiff's account as interest and penalties or, in the alternative, convert them as deposits to reduce the loan debt minus interests.*
- iv. *A declaration order that the Plaintiff is no longer indebted to the Defendant.*

These prayers were already determined when I disposed of the first issue of the suit and the way forward; therefore, I don't see a reason to repeat the same.

In conclusion, the suit is dismissed without costs, but subject to the directives regarding the interest calculated shall be 21% and, on the deductions, made on the date when the loan money was disbursed to the plaintiff's account.

I order accordingly.




K. D. MHINA
JUDGE
18/12/2023